

Silencing by Design ? Copyright Enforcement, Platform Governance, and Democratic Participation in Kenya’s Digital Public Sphere A Discussion Paper on Platform Governance and Democratic Communication

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Abstract

This paper examines the intersection of copyright enforcement, platform governance, and democratic participation in Kenya’s digital public sphere. Drawing on documented cases from April 2024 and the #RejectFinanceBill2024 protests, it argues that regardless of what triggers a given mute a legitimate rights-holder match, an overzealous automated classifier, or a bad-faith report the effect of silencing political audio is a measurable loss to democratic communication. The paper deliberately stops short of alleging that any specific act of muting was intentional or politically motivated; its claim is about consequences, not motives. It situates this problem within Kenya’s constitutional guarantees of expression, access to information, media freedom, and assembly, and proposes a governance framework for platforms, regulators, and citizens that balances intellectual-property enforcement against those guarantees.

1 Introduction

In April 2024, and again during the #RejectFinanceBill2024 protests, Kenyans documented a recurring phenomenon on Facebook, TikTok, and YouTube: videos of political rallies, press briefings, and parliamentary proceedings uploaded with the picture intact but the sound stripped out. A caption would appear “audio removed due to a copyright claim” and the speech itself would vanish into silence. For a viewer scrolling past, the effect looks identical whether it was triggered by a rights-holder’s automated bot flagging a jingle playing in the background, a platform’s own moderation system misreading a crowd chant, or a third party filing a report for reasons that have nothing to do with music at all.

This paper does not claim to know which of those mechanisms was responsible in any specific case, and it deliberately avoids naming individuals or alleging

that any politician or party has been targeted. What it argues instead is narrower and, I think, more defensible: regardless of the cause, the effect of muting political audio is a measurable loss to democratic communication a loss of transparency, an increase in public suspicion, and an opening for misinformation to fill the silence. The paper treats this as a governance problem, not a conspiracy, and asks what follows from that for platforms, regulators, and citizens in Kenya's digital public sphere.